

Amendment No. 1 to SB2468

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2468*

House Bill No. 2309

by deleting SECTION 2 and substituting the following:

SECTION 2. Tennessee Code Annotated, Section 39-17-306, is amended by deleting subsection (b) and substituting:

(b) A person commits an offense when the person, by force, threat of force, or physical obstruction, intentionally injures, intimidates, or interferes with or attempts to injure, intimidate, or interfere with another lawfully exercising or seeking to exercise the right of religious freedom, under the First Amendment of the United States Constitution or Article I, § 3 of the Tennessee Constitution, at a house of worship.

(c) A person commits an offense when the person intentionally damages or destroys or attempts to damage or destroy the property of a house of worship.

(d)

(1) A violation of subsection (a) is a Class A misdemeanor.

(2) A violation of subsection (b) or (c) is:

(A) A Class E felony, if the violation is a first offense; or

(B) A Class C felony, if the violation is a second or subsequent offense.

(e) As used in this section:

(1) "Interfere" means to obstruct a person's freedom of movement;

(2) "Intimidate" means to place a person in a reasonable apprehension of bodily injury to the person or another; and

(3) "Physical obstruction" means rendering impassable ingress or egress to or from a house of worship or rendering passage to or from such house of worship unreasonably difficult or hazardous.

(g)

(1) The following parties that were aggrieved by conduct prohibited by subsection (b) or (c) may commence a civil action under subdivision (g)(2):

(A) A person who was lawfully exercising or seeking to exercise the person's right of religious freedom under the First Amendment of the United States Constitution or Article I, § 3 of the Tennessee Constitution, at a house of worship at which the offense occurred; and

(B) The entity that owns or operates the house of worship at which the offense occurred.

(2) In an action under this subsection (g), the court may award the appropriate relief, including:

(A) Injunctive relief;

(B) Compensatory damages or statutory damages of five thousand dollars (\$5,000) per violation;

(C) Punitive damages, as provided in § 29-39-104; and

(D) Reasonable costs of bringing the action and attorney's fees.

(h) If the attorney general and reporter determines that a person or group of persons has been injured by conduct constituting a violation of subsection (b) or (c), the attorney general and reporter may commence a civil action seeking:

(1) Injunctive relief; and

(2) A civil penalty in an amount not to exceed:

(A) Ten thousand dollars (\$10,000) for a first violation of subsection (b) or (c) that did not involve the use of or threat to use force;

(B) Fifteen thousand dollars (\$15,000) for a first violation of subsection (b) or (c) involving the use of or threat to use force; or

(C) Fifteen thousand dollars (\$15,000) for a second or subsequent violation.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.